Lanco Kondapalli Power Limited vs Andhra Pradesh Electricity Regulatory ... on 30 August, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)
Appeal No 119 of 2011
Dated: 30th August, 2011

Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. V.J. Talwar, Technical Member

Lanco Kondapalli Power Limited ... Appellant(s)
Versus
Andhra Pradesh Electricity Regulatory Comm. & Ors. ....Respondent(s)
Counsel for the Appellant(s): Mr. Kirat S. Nagra & Mr. Adit S. Pujari

ORDER

It is represented by the learned counsel for the Appellant that the impugned Order was passed on 13.06.2011 and aggrieved by the same, the learned counsel for the Appellant had filed an Application for review of the Order before the Commission on 30.06.2011, which is still pending. It is also admitted that pending the Review, they also obtained the interim Orders in their favour. At this stage, they have filed this Appeal as against the impugned Order dated 13.06.2011.

Under these circumstances, we do not incline to entertain this Appeal. Accordingly, the Appeal is dismissed.

However, it is open to the Appellant to file the Appeal before this Tribunal against the impugned Order subject to the outcome of the review petition.

(V.J. Talwar) (Justice M. KarpagaVinayagam)
Technical Member Chairperson
TS/KS